

CLARE *vers.* FROST.

Two justifications allowed to be pleaded.

Trespass for cutting down the plaintiff's tree. Strange moved, and had leave to plead double; viz. that the defendant was lessee of an house and the close where the tree stood, and having liberty to cut down for repairs, he felled it on that account; and secondly, that J. S. was owner of an antient mill, to which there was a watercourse through the ground of the plaintiff, and so prescribe for a right to enter and cleanse the watercourse, and that the tree hung over, and the root spread so into the stream, that it stopped the water, and so justify the cutting down.

EDWARDS *vers.* BLUNT.

After judgment on demurrer, no motion to arrest judgment.

Per Curiam, after judgment on demurrer, the defendant shall not come to arrest the judgment on return of the inquiry, for an exception that might have been taken on arguing the demurrer. The parties cannot be said to come as amici Cur', nor shall any body tell us, that the judgment we gave on mature deliberation is wrong; it is otherwise indeed in the case of judgment [426] by default, for that is not given in so solemn a manner; or if the fault arises on the writ of inquiry or verdict, for there the party could not allege it before. *How v. Godfrey*, Mich. 4 Geo. 2.

SEAGOOD *vers.* NEALE. IN CANC.

[See *Clinan v. Cooke*, 1802, 1 Sch. & Lef. 40; *Maddison v. Alderson*, 1883, 8 App. Cas. 478.]

What writing evidence of agreement within the Statute of Frauds'(1). Prec. in Chan. 560. 2 Eq. Ca. Abr. 49, c. 20, S. C.

S. agreed to sell an estate in land to O. and wrote to his agent to deliver the title deeds to O. he having agreed to dispose of it to him. Afterwards S. sold this estate to D. who had notice of this transaction: O. brought a bill against S. and D. insisting that the letter brought the case out of the Statute of Frauds and Perjuries. But Lord Chancellor held it did not, because the agreement does not appear in it.

(1) Vide *Clerk v. Wright*, 1 Atk. 12, S. P. See *Earl of Aylesford's case*, post, 783.

CUMBER *vers.* WANE.

Trin. 5 Geo. Rot. 173.

1911. 7 H.L. 324.
11959) 2 K.B. 512.
1433, 2 K.B. 231.

[S. C. 1 Sm. L. C. (1903 ed.) 338. Referred to, *Heathcote v. Crookshanks*, 1787, 2 T. R. 28. Approved, *Fitch v. Sutton*, 1804, 5 East, 232. Questioned, *Sibree v. Tripp*, 1846, 15 M. & W. 31. Followed, *Collinson v. Lister*, 1855, 20 Beav. 355. See *Turner v. London and South Western Railway Company*, 1874, L. R. 17 Eq. 566. Impugned, *Goddard v. O'Brien*, 1882, 9 Q. B. D. 39. Followed, *Foakes v. Beer*, 1884, 9 App. Cas. 605. See *In re Warren*, 1884, 53 L. J. Ch. 1017. Distinguished, *Ibberson v. Neck*, 1886, 2 T. L. R. 427. Referred to, *Bidder v. Bridges*, 1887, 37 Ch. D. 413. Followed, *Underwood v. Underwood* [1894], P. 209. See *Salton v. New Beeston Cycle Company* [1900], 1 Ch. 48.]

Giving a note for 5l. cannot be pleaded as a satisfaction for 15l.

Error e C. B. in an indebitatus assumpsit for 15l. The defendant pleads, that he gave the plaintiff a promissory note for 5l. in satisfaction, and that the plaintiff received it in satisfaction. The plaintiff put in an immaterial replication, to which the defendant demurred. And after judgment for the plaintiff, it was objected on error, that

the plea was ill, it appearing that the note for 5l. could not be a satisfaction for 15l. and that where one contract is to be pleaded in satisfaction of another, it ought to be a contract of an higher nature. Hob. 68. 2 Keb. 804. One bond cannot be pleaded in satisfaction of another. 1 Mod. 225. 2 Keb. 851. Even the actual payment of 5l. would not do, because it is a less sum. 5 Co. 117. 1 Leon. 19. Much less shall a note payable at a future day.

E contra. It was argued, that the plaintiff's demand consisting only in damages, it was for his benefit to have it reduced to a certainty, and to have the security for it made negotiable. A stated account may be pleaded in bar of an action of covenant. 4 Mod. 43. 1 Mod. 261. 1 Roll. Abr. 122. Formerly indeed executory promises were not held a satisfaction, but the contrary has been since adjudged. Raym. 450. Salk. 76. And now it is held that an award before performance is a bar of the former action.

Et per Pratt C.J. (on consideration). We are all of opinion, that the plea is not good, and therefore the judgment must be affirmed: as the plaintiff had a good cause of action, it can only be extinguished by a satisfaction he agrees to accept; and it is not [427] his agreement alone that is sufficient, but it must appear to the Court to be a reasonable satisfaction; or at least the contrary must not appear, as it does in this case. If 5l. be (as is admitted) no satisfaction for 15l. why is a simple contract to pay 5l. a satisfaction for another simple contract of three times the value? In the case of a bond, another has never been allowed to be pleaded in satisfaction, without a bettering of the plaintiff's case, as by shortening the time of payment. Nay in all instances the bettering his case is not sufficient, for a bond with sureties is better than a single bond, and yet that will not be a satisfaction. 1 Brownl. 47, 71. 2 Roll. Abr. 470. The judgment therefore must be affirmed (1).

Then it was alleged, that since the time which the Court took to advise, the defendant in error was dead; and therefore they prayed, that they might enter the judgment nunc pro tunc, as was done in the case of *Baller v. Delander*, Trin. 1 Geo. in B. R. which was ordered accordingly (2).

(1) *Taylor v. Baker*, 5 Mod. 136. But the present case was denied to be law in *Hardcastle v. Howard*, H. 26 Geo. 3. Vide 2 Term Rep. 28. See also *Kearlake v. Morgan*, 5 Term Rep. 513.

(2) *Craven v. Henley*, Barnes 255. *Astley v. Reynolds*, post, 917. *Tooker v. Duke of Beaufort*, 1 Burr. 147. *Sir John Trelawney v. Bishop of Winchester*, ib. 226, S. P. Vide also 1 Leon. 287. 1 Sid. 462. 1 Vent. 58, 90. But *Blachall v. Heal*, Com. Rep. 13, contra.

RIGHT *vers.* HAMOND.

Construction of a devise. Comyns 23. 2 Eq. Ab. 311, c. 17, 338, pl. 11.
8 Vin. Abr. tit. Devise (L. 2), pl. 32, 104, S. C.

In ejectment, a case was made at Kent Assizes; that Thomas Came, being tenant for life of the lands in question, remainder to his wife for life, remainder to his own right heirs, 20 October 1673, made his will in these words: "Item, my lands by Woolwich my wife is to enjoy for her life, after her decease of right it goeth to my daughter Elizabeth for ever, provided she hath heirs; if my said daughter Elizabeth should die before her mother, or without heirs, and my said wife Mary should marry again and have an heir male, I bequeath him all my right to that estate, not thinking I can sufficiently reward her love; if my said wife marrieth again, and falls of heir male, after her decease and my daughter, she failing of heirs, I bequeath 50l. per ann. of that estate to my brother Joseph Came, and to his heirs for ever." And then distributed the rest to other persons.

The deviser died, and the wife married again, and had issue Thomas Hamond the defendant, and died. Then Elizabeth the daughter died without issue. And upon her death the lessors of the plaintiff claim the estate as right heirs of the deviser, and the defendant claims under the devise to the heir male of the deviser's wife by a second husband.

Reeve pro quer' argued, that the devise to the defendant was void, being of a fee